

Smt Sunita Suman vs Rajvir And Ors on 5 September, 2012

Author: Alok Sharma

Bench: Alok Sharma

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN AT JAIPUR BENCH

JUDGMENT

S.B. CIVIL WRIT PETITION No.13712/2011
(Smt. Sunita Suman Vs. Rajveer @ Shafikur Rahman & Others)

Date of Order: September 5, 2012

PRESENT

HON'BLE MR. JUSTICE ALOK SHARMA

Mr. Dharmendra Kumar Srivastava, for the petitioner.

BY THE COURT:

This petition has been filed seeking a direction that the trial in C.M. Case No.65/2011, Smt. Sunita Suman Vs. Rajveer, filed by the petitioner under Sections 7, 12, and 21 of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act, 1955') before the Family Court Kota be expedited with reference to Section 21B(2) of the Act, 1955 wherein it has been provided that every petition under the Act, 1955 shall be tried as expeditiously as possible and endeavour shall be made to conclude the trial within six months from the date of service of notice of the petition on the respondent.

Counsel for the petitioner submits that the petition under Sections 7, 12, & 21 of the Act, 1955 was filed on 21-7-2011 seeking a declaration that the marriage on 29-5-2011 between the petitioner and the respondent, Rajveer, was void. He submits that the respondent-husband has been served. His case is that in terms of Section 21B(2) of the Act, 1955, the Family Court, Kota ought to have been conscious of the statutory provision and expedited the trial. Yet the trial in the matter is proceeding at very slow pace. He has submitted that attempts for reconciliation have also failed.

Counsel for the petitioner submits that once even reconciliation had failed, it was incumbent for the Family Court, Kota to fast track the trial. Instead the trial is not proceeding as warranted under the Act, 1955 inasmuch as dates of over 2 to 3 months are being fixed in case of each adjournment. He submits that the issues having already been framed rather than adjourn the matter three months on

each occasion without just cause, the Family Court, Kota ought to have commenced a day to day trial with adjournment being the exception and not a right conferred on the mere asking. He submits that adjournments should only be by way of reasoned orders with the object of a fair trial and not an instrument of harassment of the petitioning wife.

Having heard the counsel for the petitioner and perused the order-sheets of the family court as filed before this Court and also passed over in the course of hearing of this petition, I am of the view that in the facts of the case, it is just and proper to direct the Family Court, Kota to conclude the trial in the divorce petition filed by the petitioner within a period of four months from the next date. Adjournment in the matter shall not be granted without just cause on a proper application being filed to the satisfaction of the Family Court and passing of a considered and reasoned order thereon.

With these directions, this writ petition is disposed of.

(ALOK SHARMA), J.

arn/ All corrections made in the order have been incorporated in the order being emailed.

Arun Kumar Sharma, Private Secretary.